

SENATE BILL 2428

By Crowe

AN ACT to amend Tennessee Code Annotated, Title 7,  
Chapter 51; Title 8, Chapter 30, Part 3 and Title  
58, Chapter 2, relative to veterans.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 51, is amended by adding  
the following as a new part:

**7-51-2801.**

As used in this part, "local governmental entity" means a governing body, board,  
commission, committee, department, or law enforcement agency of a municipality,  
county, or other political subdivision of this state.

**7-51-2802.**

(a) When a local governmental entity extends invitations to interview candidates,  
whether for appointment or promotion, and the pool of candidates includes a person who  
has been honorably discharged from the army, navy, air force, marine corps, space  
force, or coast guard, or a member of the reserve components, as defined in 10 U.S.C. §  
10101, who performs active federal service in the armed forces of the United States, the  
local governmental entity shall invite these persons to interview.

(b) If a veteran is in the pool of candidates and meets the minimum qualifications  
for the position, and the skills, abilities, competencies, and knowledge of the veteran and  
another applicant being interviewed for the position are equal, preference must be given  
to the veteran for the position.

(c) When a local governmental entity extends invitations to interview candidates,  
whether for appointment or promotion, the local governmental entity shall invite the

spouse or surviving spouse of a veteran to interview, if the spouse or surviving spouse is a qualified voter in this state or has been a resident of this state for two (2) years preceding such person's application, and one (1) of the two (2) following circumstances exists:

(1) As a result of such military service, the veteran suffered a one hundred percent (100%) service-connected disability or is permanently and totally disabled; or

(2)

(A) The veteran died in the line of duty during such military service; and

(B) The surviving spouse has not remarried since the death of the veteran.

(d) A local governmental entity that passes over an eligible veteran and selects an eligible nonveteran shall file with the commissioner of veterans services, within thirty (30) days, the reasons for so doing, which reasons will become a part of the veteran's record, but will not be made available to anyone other than the veteran.

(e) An application form used by a local governmental entity must include the option for the applicant to declare veteran status.

(f) This section is in addition to, and does not supersede, any federal laws or rules regarding the hiring of veterans.

SECTION 2. Tennessee Code Annotated, Section 8-30-307, is amended by adding the following as a new subsection:

(e) An application form used by an appointing authority must include the option for the applicant to declare veteran status.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.